



ROHIT JAIN PARAS

ROLLING BACK Private hospital doctors protesting against the Right to Health Bill in Jaipur on April 4; they later called off the strike after talks with CM Ashok Gehlot (inset)

RAJASTHAN

GEHLOT SWALLOWS A BITTER PILL

By Rohit Parihar

From a stalemate to reconciliation, Rajasthan chief minister Ashok Gehlot had to finally relent on his tough stance in order to end the two-week-long complete shutdown of private healthcare services in the state. What was being touted as a landmark legislation, the Rajasthan Right to Health (RTH) Bill ended up paralysing the state's healthcare system after it was hurriedly pushed through the state assembly on March 21.

Though initially refusing to roll it back, Gehlot on April 4 agreed to make changes to the rules and regulations, and till then put in abeyance the new law's enforcement, following overnight hectic parleys to end the impasse with the representatives of striking private hospitals and doctors.

Under the proposed law, every resident of the state was to have the right to get emergency treatment without the "prepayment" of any fee at any healthcare facility, including private ones. The government would then have reimbursed the institutions if the patient failed to pay the fee after treatment. The Congress had promised the law in its election manifesto in 2018. But a couple of contentious clauses inserted in the original draft, purportedly pushed by the "left lobby" without taking private health institutions on board, ended up raising hackles.

As a result, private doctors hit the roads in statewide protests. Almost all private health facilities, including test laboratories, were shut. Thousands of surgeries were deferred. On March 27, an estimated 100,000 private doctors and support staff took out a protest march in Jaipur, chanting "No to RTH" slogans. They found support from private doctors across India and even some government ones in the state, with the Indian Medical Association calling for the law to be scrapped.

What the doctors had found exceptionally objectionable was that the bill failed to define an "emergency", thus taking away their right to assess the patient's condition. Moreover, the binding provision of not only providing emergency care but also stabilising the patient and then arranging for their transport to another hospital, if required, ignored the financial and medical capability of the health facility, which could even be a small clinic. Any violation was to invite fines to be decided by grievance redressal bodies, thus giving sweeping powers to bureaucrats. Even the reimbursement rates were left to the government to decide.

The protests were going on till the afternoon on April 4, before being called off after Gehlot tweeted about the agreement reached with the doctors. "I am glad that finally the government and doctors could reach a